

**CHAPTER cxvi.**

An Act to confirm certain Provisional Orders of the Local Government Board relating to Bradford (Yorkshire) Ealing Eaton Bray (Rural) Glastonbury Rhyl and the Fylde Water Board District. A.D. 1904.
[22nd July 1904.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders set out in the schedule hereto are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 5) Act 1904. Short title.

A.D. 1904.
— —

S C H E D U L E.

CITY OF BRADFORD (YORKS).

*Bradford
(Yorks)
Order.*

*Provisional Order to enable the Urban Sanitary Authority for
the City of Bradford (Yorks) to put in force the Compulsory
Clauses of the Lands Clauses Acts.*

To the Mayor Aldermen and Citizens of the City of Bradford ; —

And to all others whom it may concern.

WHEREAS the Mayor Aldermen and Citizens of the City of Bradford acting by the council as the Urban Sanitary Authority for that City (herein-after referred to as "the Corporation") require to purchase and take the lands described in the schedule hereto for the construction of a main outfall sewer and for the disposal of the sewage of the City :

83 & 84 Viet.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz.,—

Art. I. The Corporation shall be empowered to put in force with reference to the lands described in the schedule hereto subject to the continuance of existing public rights of highway (if any) and for the purposes aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Art. II. This Order may be cited as the Bradford (Yorks) Order 1904.

The SCHEDULE above referred to.

A.D. 1904.
Bradford
(Yorks)
Order.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.
Township of BRADFORD in the City of BRADFORD.			
1	Field and old quarry tip -	John Gordon Atkinson Jowett.	In hand.
2	Ditto - - -	Edgar Armitage Speight Frank Speight Emma Speight William Booth Woodhead.	Edgar Armitage Speight Frank Speight Emma Speight William Booth Woodhead.
3	Plantation and watercourse -	John Thomas Riddiough -	In hand.
Parish of SHIPLEY in the County of the West Riding of YORKSHIRE.			
1A	Plantation and old quarry tip.	John Gordon Atkinson Jowett.	In hand.
2A	Ditto - - -	Edgar Armitage Speight Frank Speight Emma Speight.	Ditto.
3A	Plantation and watercourse -	J. Prideaux Metcalfe -	Edmund Pullan.
3B	Field - - -	John Gordon Atkinson Jowett.	Matthew Calvert.
Township of IDLE in the City of BRADFORD.			
4	Field - - -	William Christopher Dawson	John Wilkinson.
5	Ditto - - -	John Gordon Atkinson Jowett.	Marshall Scott.
6	Ditto - - -	William Christopher Dawson	John Wilkinson.
7	Ditto - - -	Ditto - - -	Ditto.
Township of BAILDON in the County of the West Riding of YORKSHIRE.			
8	Chemical works land cottages yard and out-buildings.	Edward Lord - - -	Edward Lord.
9	Land and mission church "St. James".	Edward Lord Reverend W. J. Margetts Vicar of Baildon.	—
10	Bridle road and occupation road.	Edward Lord Albert Rendell	—
11	House laundry garden and outbuildings.	Albert Rendell - - -	In hand.
12	Field footpath and bed of river.	Albert Rendell Baildon Urban District Council.	Ditto.
13	Ditto - - -	Ditto - - -	Ditto.
14	Plantation - - -	Albert Rendell - - -	Ditto.
15	Field - - -	Ditto - - -	Ditto.
16	Ditto - - -	Ditto - - -	Ditto.

[Ch. cxvi.] *Local Government Board's* [4 EDW. 7.]
Provisional Orders Confirmation (No. 5) Act, 1904.

A.D. 1904.
 ———
Bradford
(Yorks)
Order.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.
17	Field footpath and bed of river.	Albert Rendell Baildon Urban District Council.	In hand.
18	House garden and out-buildings.	Albert Rendell - -	Ellen Heselton.
19	Ditto - -	Ditto - -	Mary Lambert.
21	Cottage yard and out-buildings.	John Denby - -	Eliza Burton Arthur Vanham.
22	Cottage - -	Ditto - -	Arthur Vanham.
23	Cottage stable garden and outbuildings.	Ditto - -	George Osborne.
24	Bridle road - -	John Denby Edward Dobson	—
25	House known as "Tarn Grange" garden and out-buildings.	Edward Dobson - -	Edward Dobson.
26	Land outbuildings and occupation road.	John Denby - -	Edwin Hainsworth Martha Davey Hugh Kershaw Walter Newsome Isaac Osborne Herbert Slingsby Walter Hodges William Newsome.
27	House and garden - -	Ditto - -	Edwin Hainsworth.
28	Ditto - -	Ditto - -	Martha Davey.
29	Ditto - -	Ditto - -	Hugh Kershaw.
30	Ditto - -	Ditto - -	Walter Newsome.
31	Ditto - -	Ditto - -	Isaac Osborne.
32	Ditto - -	Ditto - -	Herbert Slingsby.
33	Ditto - -	Ditto - -	Walter Hodges.
34	Ditto - -	Ditto - -	William Newsome.
35	House - -	Frederick Robinson -	Unoccupied.
36	Ditto - -	Ditto - -	William Atherton.
37	Ditto - -	Ditto - -	Samuel Yates.
38	Ditto - -	Ditto - -	Halliday Leach.
39	Ditto - -	Ditto - -	Thomas Barker.
40	Ditto - -	Ditto - -	James Harrison.
41	Ditto - -	Ditto - -	Ernest Ramsden.
42	Yard and outbuildings -	Ditto - -	Samuel Yates William Atherton Halliday Leach Thomas Barker James Harrison Ernest Ramsden.
43	Field occupation road and footpath.	Albert Rendell Baildon Urban District Council.	In hand.
44	Field - -	Albert Rendell - -	Ditto.
45	House garden outbuildings and garth.	Ditto - -	Unoccupied.

A.D. 1904.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.
Township of ESHOLT in the County of the West Riding of YORKSHIRE.			
46	Watercourse - - -	Albert Rendell - - -	—
47	Field watercourse and occupation road.	George Barker Albert Barker	In hand.
48	House garden and out-buildings.	Elizabeth Pape George Barker Albert Barker.	Richard Pape.
49	Wool warehouse land and watercourse.	George Barker Albert Barker.	In hand.
50	Fellmonger's works yard cottage storerooms wool warehouses and watercourse.	Ditto - - -	Ditto.
51	Field and watercourse -	Ditto - - -	Ditto.
52	House garden and out-buildings.	Albert Barker - - -	Albert Barker.
53	Ditto - - -	George Barker - - -	George Barker.
54	Field and watercourse -	The Executors of Lady Mary Ann Thompson deceased viz. Sir Neill Thompson Baronet and William Whitaker Thompson.	Thomas Denby.
77	Highway - - -	The Executors of Lady Mary Ann Thompson deceased (as before) David Balmford Joseph Halstead William Wade.	—
78	Field - - -	David Balmford Joseph Halstead William Wade.	Robert Kell.
79	Ditto - - -	The Executors of Lady Mary Ann Thompson deceased (as before).	Thomas Denby.
80	Ditto - - -	David Balmford Joseph Halstead William Wade.	Robert Kell.
81	Ditto - - -	Ditto - - -	Ditto.
82	Ditto - - -	Ditto - - -	Ditto.
89	Field and occupation road -	The Executors of Lady Mary Ann Thompson deceased (as before).	Thomas Denby.
94	Cottage garden and out-buildings.	Joseph Robinson Samuel Robinson.	Unoccupied.
95	Ditto - - -	Ditto - - -	Thomas Hardisty.
96	Ditto - - -	Ditto - - -	Holmes Hodgson.
97	Ditto - - -	Ditto - - -	Samuel Cockshott.
98	Ditto - - -	Ditto - - -	Middleton Hodgson.
99	Ditto - - -	Ditto - - -	Joseph Demain.
101	Cottage and outbuildings -	Mary Frances Beaumont Louisa Mary Waithman Catherine Hanson.	Unoccupied.
102	Ditto - - -	Ditto - - -	Harry Robinson.

Bradford
(Yorks)
Order.

[Ch. cxvi.] *Local Government Board's* [4 EDW. 7.]
Provisional Orders Confirmation (No. 5) Act, 1904.

A.D. 1904.

Bradford
(Yorks)
Order.

Nos. of deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.
103	Cottage and outbuildings -	Mary Frances Beaumont Louisa Mary Waithman Catherine Hanson.	Unoccupied.
114	House garden and out-buildings.	Charles Long - - -	Abraham Ambrose Williams.

Given under the Seal of Office of the Local Government Board this
Nineteenth day of April One thousand nine hundred and four.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

BOROUGH OF EALING.

Ealing Order. Provisional Order to enable the Urban District Council for the Borough of Ealing to put in force the Compulsory Clauses of the Lands Clauses Acts.

To the Mayor Aldermen and Burgesses of the Borough of Ealing ; —

And to all others whom it may concern.

WHEREAS the Mayor Aldermen and Burgesses of the Borough of Ealing acting by the council as the Urban District Council for that Borough (hereinafter referred to as "the Corporation") require to purchase and take the lands described in the schedule hereto for the purpose of widening opening enlarging or otherwise improving the street called Spring Bridge Road in the Borough :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz.,—

Art. I. The Corporation shall be empowered to put in force with reference to the lands described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Art. II. This Order may be cited as the Ealing Order 1904.

The SCHEDULE above referred to.

A.D. 1904.
Ealing Order.

Borough of EALING.

No. and Colour on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.
1 Pink.	A piece or parcel of land situate on the west side of Spring Bridge Road containing 140 square yards or thereabouts.	The Ecclesiastical Commissioners and the Reverend William Templeton King as Vicar of Christ Church Ealing.	The Reverend William Templeton King Vicar and Frederick Charlton Turner Challoner and Miles Bradshaw Weston Churchwardens of Christ Church Ealing.

Given under the Seal of Office of the Local Government Board this
Twelfth day of April One thousand nine hundred and four.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

RURAL DISTRICT OF EATON BRAY.

Provisional Order to enable the Rural District Council of Eaton Bray to put in force the Compulsory Clauses of the Lands Clauses Acts. *Eaton Bray Rural Order.*

To the Rural District Council of Eaton Bray ; —
And to all others whom it may concern.

WHEREAS the Rural District Council of Eaton Bray (herein-after referred to as "the Council") require to purchase and take the lands described in the schedule hereto for the disposal of the sewage of the contributory place of Eaton Bray in their district :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz,—

Art. I. The Council shall be empowered to put in force with reference to the lands described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Art. II. This Order may be cited as the Eaton Bray Rural Order 1904.

[Ch. cxvi.] *Local Government Board's* [4 EDW. 7.]
Provisional Orders Confirmation (No. 5) Act, 1904.

A.D. 1904.

*Eaton Bray
Rural Order.*

The SCHEDULE above referred to.

Parish of EATON BRAY in the County of BEDFORD.

No. and Colour on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupier.
1 (pink).	Arable land known as "Clumbushes" and part of bed of brook.	Arthur Macnamara and the surviving Trustee of the Estate viz. Richard Pennington.	Gaius Batchelar.

Given under the Seal of Office of the Local Government Board this
Twentieth day of April One thousand nine hundred and four.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

FYLDE WATER BOARD DISTRICT.

Fylde Order.

*Provisional Order for altering the Fylde Water Board
Act 1899.*

To the Fylde Water Board ; —

To the Mayor Aldermen and Burgesses of the Borough of Blackpool ; —

To the Urban District Council of Fleetwood ; —

To the Urban District Council of Lytham ; —

To the Urban District Council of Saint Anne's-on-the-Sea ; —

And to all others whom it may concern.

60 & 61 Vict.
c. ccxxxi.

WHEREAS under the provisions of the Fylde Waterworks (Transfer) Act 1897 (herein-after referred to as "the Act of 1897") a Joint Board consisting of members appointed by the Council of the Borough of Blackpool the Urban District Council of Fleetwood the Urban District Council of Lytham and the Urban District Council of Saint Anne's-on-the-Sea has been incorporated under the name and style of the Fylde Water Board (herein-after referred to as "the Water Board");

62 & 63 Vict.
c. cexliii.

And whereas in pursuance of the Act of 1897 and of the Fylde Water Board Act 1899 (herein-after referred to as "the Act of 1899") the Water Board acquired the undertaking of the Fylde Waterworks Company;

And whereas by Section 13 of the Act of 1899 the Water Board are empowered to maintain renew extend and repair the reservoirs mains pipes

and other waterworks for the time being belonging to them by virtue of the Act of 1897 and the Act of 1899 or otherwise;

A.D. 1904.
Fylde Order.

And whereas by Section 43 of the Act of 1897 and Section 15 of the Act of 1899 the Water Board were empowered to acquire by agreement and to hold for the purposes of their water undertaking any lands not exceeding in the whole forty acres in addition to the other lands which they were authorised by the said Acts to acquire;

And whereas the Water Board have purchased the land adjacent to their existing reservoirs and described in the schedule hereto and it is expedient that provision be made to enable them to construct thereon the reservoir and works herein-after mentioned:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 as extended and applied by Section 46 of the Act of 1897 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Act of 1899 shall be altered so that the following provisions shall take effect that is to say:—

88 & 39 Vict.
c. 55.

Art. I.—(1) The land described in the schedule to this Order shall be deemed to have been purchased and acquired by the Water Board under the powers and for the purposes of the Act of 1897 and the Act of 1899 and the said Acts shall apply and have effect accordingly.

Lands acquired by Water Board to be deemed to have been acquired for purposes of Acts of 1897 and 1899.

(2) The Water Board may in addition to the works which they are authorised to construct and maintain under the Act of 1899 construct and maintain on the land described in the schedule to this Order and in accordance with plans and sections to be approved by the Local Government Board a reservoir and works in connexion therewith.

Additional waterworks.

(3) Sections 308 327 to 329 and 332 of the Public Health Act 1875 shall apply and have effect in relation to any works and to any powers which the Water Board may construct or exercise in pursuance of subdivision (2) of this Article as if the said sections were herein re-enacted and in terms made applicable with the necessary modifications to the Water Board and to the said works and powers.

Art. II. Nothing in this Order shall prejudicially affect the powers of the Water Board under Section 43 of the Act of 1897 and Section 15 of the Act of 1899 with respect to the acquisition by agreement and the holding of land for the purposes of their water undertaking.

Saving of powers under Section 43 of Act of 1897 and Section 15 of Act of 1899.

Art. III. This Order may be cited as the Fylde Order 1904.

Short title.

A.D. 1904.
Fylde Order.

S C H E D U L E.

All those several closes of land and portion of Leathercote Wood adjacent to the Barnacre Reservoirs situate at Grizedale Lea in the Township of Barnacre with Bonds near Garstang in the County of Lancaster containing in the whole including the site of the road on the east side of the premises one hundred and thirty-six acres statute measure or thereabouts which were conveyed unto and to the use of the Fylde Water Board their successors and assigns in fee simple by an Indenture expressed to be made on the Twentieth day of September One thousand nine hundred and two between the Right Honourable Lord Arthur William Hill commonly called Lord Arthur William Hill and Ralph Daubeney Upton of the first part Thomas Henry Rushton of the second part and the Fylde Water Board of the third part.

Given under the Seal of Office of the Local Government Board this
Twenty-fourth day of March One thousand nine hundred and
four.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

BOROUGH OF GLASTONBURY.

*Glastonbury
Order.*

*Provisional Order for altering the Glastonbury Corporation
Gas Act 1900.*

To the Mayor Aldermen and Burgesses of the Borough of Glastonbury ; —
And to all others whom it may concern.

63 & 64 Vict.
c. XXXV.

WHEREAS the Borough of Glastonbury (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban District Council and as such council are the local authority within the meaning of the Public Health Act 1875 and the unrepealed provisions of the Glastonbury Corporation Gas Act 1900 (herein-after referred to as "the Local Act") are in force in the Borough ;

And whereas under the provisions of the Local Act the Corporation have purchased the undertaking of the Glastonbury Gas and Coke Company Limited (herein-after referred to as "the Company") and by Section 9 of the Local Act it is provided that the mortgage debt of the Company amounting to two thousand two hundred pounds (herein-after referred to as "the mortgage debt") and the interest thereon shall after the transfer of the undertaking of the Company and until discharged by the Corporation be the first charge on the gas undertaking of the Corporation ;

[4 EDW. 7.] *Local Government Board's* [Ch. cxvi.]
Provisional Orders Confirmation (No. 5) Act, 1904.

And whereas by Section 39 of the Local Act the Corporation were empowered to borrow money for the purposes therein mentioned but the repayment of the mortgage debt of the Company was not included among those purposes; A.D. 1904.
Glastonbury Order.

And whereas by Section 53 of the Local Act provision is made as to the application of the moneys received by the Corporation by way of revenue in respect of the gas undertaking ;

And whereas it is expedient that provision should be made for the repayment by the Corporation of the mortgage debt of the Company and for authorising the Corporation to borrow money for that purpose and that certain other alterations should be made in the Local Act :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order (herein-after referred to as "the commencement of this Order") the Local Act shall be altered so that the following provisions shall have effect that is to say :— 38 & 39 Vict.
c. 55.

Art. I. Sub-section (1) of Section 39 of the Local Act shall have effect as if the following clause were added thereto that is to say :— Additional borrowing powers for repayment of mortgage debt of Company.

" (d) For paying off the mortgage debt of the Company the sum requisite for that purpose."

Art. II. Section 43 of the Local Act shall be altered so as to require the Corporation to pay off the mortgage debt and any moneys borrowed by the Corporation for that purpose within forty years from the transfer of the gas undertaking of the Company to the Corporation and that period is herein-after referred to as "the prescribed period" and shall be the prescribed period for the purposes of the Local Act as altered by this Order. Period for repayment of mortgage debt or of borrowed moneys.

Art. III. Subject to the provisions of this Order Sections 44 and 46 of the Local Act shall be altered so as to extend to the paying off of the mortgage debt and of moneys borrowed for that purpose and the first-mentioned section shall be further altered so as to require the first instalment or the first payment to a sinking fund in respect of the mortgage debt and of the moneys borrowed as aforesaid to be made within one year from the commencement of this Order. Application of provisions of Sections 44 and 46 of Local Act.

Art. IV. Section 49 of the Local Act shall have effect as if the following provision were substituted therefor that is to say :— Alteration of Section 49 of Local Act as to power to re-borrow.

" 49. The Corporation shall except as herein-after provided have
 " power to re-borrow for the purpose of paying off any moneys bor-
 " rowed or re-borrowed under this Act which have not been repaid
 " and are intended to be forthwith repaid or in respect of any moneys
 " which have been repaid by the temporary application of funds at
 " the disposal of the Corporation within twelve months before the

A.D. 1904.

*Glastonbury
Order.*

" re-borrowing and which at the time of the repayment it was
 " intended to re-borrow :

" Provided that the Corporation shall not have power to re-borrow
 " for the purpose of paying off any moneys repaid by instalments or
 " annual payments or by means of a sinking fund or out of moneys
 " derived from the sale of land or out of any capital moneys properly
 " applicable to the purpose of such repayment other than moneys
 " borrowed for that purpose :

" Provided also that any moneys re-borrowed shall be deemed
 " to form the same loan as the money for the repayment of which
 " the re-borrowing has been made and shall be repaid within the
 " prescribed period."

Alteration of
 Section 53 of
 Local Act as to
 application of
 revenue.

Art. V. Section 53 of the Local Act shall have effect as if for the para-
 graphs therein commencing " Secondly " and " Thirdly " there were substituted
 the paragraphs following that is to say :—

" Secondly.—In payment of the interest on the mortgage debt of the
 " Company and on moneys borrowed by the Corporation for the
 " purposes of their gas undertaking or for the repayment of the
 " mortgage debt of the Company :

" Thirdly.—In providing the requisite appropriations instalments of
 " principal or sinking fund payments in respect of moneys borrowed
 " by the Corporation for the purposes of their gas undertaking or
 " for the repayment of the mortgage debt of the Company."

Saving for
 mortgagees.

Art. VI. Nothing in or done in pursuance of this Order so far as it
 applies to the mortgage debt shall prejudicially affect the security of any
 mortgagee or empower the Corporation without the consent of any mortgagee
 to require that mortgagee to accept payment in discharge of any part of the
 mortgage debt otherwise than in accordance with the conditions of his
 security :

Provided that where the circumstances so require the Corporation and
 any mortgagee may make an agreement for the discharge of any part of
 the mortgage debt subject to such conditions as will facilitate compliance
 by the Corporation with the requirements of this Order and the security of
 the mortgagee shall have effect subject to any such agreement.

Short title.

Art. VII. This Order may be cited as the Glastonbury Order 1904.

Given under the Seal of Office of the Local Government Board this
 Thirteenth day of April One thousand nine hundred and four.

(L.S.)

WALTER H. LONG President.
 S. B. PROVIS Secretary.

URBAN DISTRICT OF RHYL.

A.D. 1904.

*Provisional Order for altering certain Local Acts.**Rhyl Order.*

To the Urban District Council of Rhyl; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Rhyl (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Rhyl (herein-after referred to as "the district");

And whereas the unrepealed provisions of the Rhyl Improvement Act 1892 and the Rhyl Improvement Act 1901 (each of which Acts is herein-after separately referred to as the Act of the year in which it was passed and both of which Acts are herein-after together referred to as "the Local Acts") are in force in the district;

55 & 56 Vict.
c. clix.
1 Edw. 7.
c. ccxxix.

And whereas by virtue of Section 55 of the Act of 1892 and Section 107 of the Act of 1901 the Council are required to apply all moneys borrowed under those Acts respectively only to the purposes for which the said moneys are respectively authorised to be borrowed and to which capital is properly applicable;

And whereas it is expedient that provision should be made with respect to the application of moneys borrowed under the Local Acts in excess of the amount required for the purposes for which those moneys were authorised to be borrowed:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts shall be altered so that the following provisions shall have effect that is to say:—

38 & 39 Vict.
c. 55.

Art. I. Notwithstanding anything in Section 55 of the Act of 1892 or in Section 107 of the Act of 1901 the Council may with Our approval and subject to such conditions as We may prescribe apply in such manner and to such purposes as they may determine any moneys borrowed under the Local Acts in excess of the amount required for the purposes for which the said moneys were respectively authorised to be borrowed.

Alteration of
Section 55 of
Act of 1892
and Section 107
of Act of 1901.

Art. II. This Order may be cited as the Rhyl Order 1904.

Short title.

Given under the Seal of Office of the Local Government Board this
Fourth day of April One thousand nine hundred and four.

(L.S.)

WALTER H. LONG President.

S. B. PROVIS Secretary.

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